

30 January 2020

Greenwich Park, Blackheath Avenue

in the Royal Borough of Greenwich

planning application no.19/3497/F

Strategic planning application stage 1 referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

Temporary use and associated works to create a Fan Zone for the screening of football matches and hosting community events during the Euro 2020 Tournament.

The applicant

The applicant is the **Greater London Authority (Events for London – Euro 2020 Fan Zone)**, and the architect is **Loudsound Limited**.

Strategic issues summary:

Principle of development: Installation of temporary structures for outdoor sports and recreation use for a temporary period on Metropolitan Open Land is appropriate development and acceptable, providing the facilities preserve openness and do not conflict with the purposes of including land within it. Mitigation measures must be secured to ensure that the land is returned to its existing or better condition (paragraphs 15 to 20).

Community use: The wider community benefits, the intended level of access and fee discounts should be secured by way of condition / s106 planning agreement (paragraphs 21 and 22).

Heritage: The proposal would result in less than substantial harm to listed buildings, the World Heritage Site and the Conservation Area. However, this harm would be outweighed by the community benefits of the proposal, which would also increase public use of the site for sports and cultural purposes (paragraphs 23 to 32).

Transport: The proposal is supported in principle and all outstanding concerns can be addressed and secured through conditions and planning agreement (paragraphs 35 to 37).

Recommendation

That Royal Borough of Greenwich, be advised that the application complies with the London Plan and Intend to Publish London Plan, for the reasons set out in paragraph 41 of this report and does not need to be referred back to the Mayor.

Context

1 On 17 December 2019 the Mayor of London received documents from the Royal Borough of Greenwich notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008 the Mayor must provide the Council with a statement setting out whether he considers that the application complies with the London Plan and the Mayor's Intend to Publish London Plan, and his reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's consideration in deciding what decision to make.

2 The application is referable under Category 3D of the Schedule to the Order 2008:

- Category 3D: *"Development – (a) on land allocated as Green Belt or Metropolitan Open Land in the development plan, in proposals for such a plan, or in proposals for the alteration or replacement of such a plan; and (b) which would involve the construction of a building with a floor space of more than 1,000 square metres or a material change in the use of such building."*

3 Once the Royal Borough of Greenwich has resolved to determine the application, it is required to refer it back to the Mayor for his decision, as to whether to direct refusal or allow the Council to determine it itself, unless otherwise advised. In this instance, the Council does not need to refer the application back to the Mayor.

4 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

5 The application site is entirely within Metropolitan Open Land and Greenwich Park Conservation Area. The red line boundary encompasses the main event site (Event Site), the service zone (Boneyard) and includes the Park roads of Blackheath Avenue and The Avenue to create a contiguous site. This boundary totals 25.8 hectares, although the area where activities will take place, the Event Site and Boneyard, are 9.5ha and 1.6ha, respectively.

6 Greenwich Park is a Royal Park and one of the largest single green spaces in southeast London, covering 75 hectares. It is part of Greenwich Maritime World Heritage Site (WHS) and is a rich historic resource having important heritage, cultural, biodiversity, conservation and recreational value. It is protected by various statutory and local designations that recognise the Park to be a highly sensitive location. The Park and surrounding area is a popular tourist destination as well as being well used by London residents and the local community.

7 The majority of the site is owned by The Royal Parks, a registered charity since 2017. The northern boundary extends into the site of The Queen's House, which is in the custodianship of the Trustees of the National Maritime Museum. Blackheath Circus Field at the southern end of the site lies just outside the Park. It is owned by the Royal Borough of Greenwich (RBG).

8 The site is located to the north of the A2 Shooters Hill, which forms part of the Transport for London Road Network (TLRN) and the A206 Romney Road to the north, which forms part of the Strategic Road Network (SRN). It is bounded by various borough highways and the rest of the Park. The site is served by Cutty Sark (DLR), Greenwich (DLR and national rail) and Maze Hill (national rail) stations, 450 metres 620 metres and 430 metres away respectively from the closest formal entrance to the Fan Zone. The site is also well served by bus, with seven services (and two night services) within reasonable walking distance of at least two of the entries/exits for spectators. As a result, the site has a varied public transport accessibility level (PTAL) ranging from 6 in the northwest corner to 1 in the centre of the site, on a scale of 0-6b, where 6b is the highest.

Details of the proposal

9 Temporary use and associated works to create a Fan Zone for the screening of football matches and hosting community events during the Euro 2020 Tournament comprising erection and installation of media screens; PA towers and media deck; main stage; marquees, chalets, gazebos, mobile catering units for food and beverage sales and retail merchandising; sponsor activation zones and associated structures; cabins, marquees and temporary structures for event management and production offices, medical & welfare centre, WCs; external lighting columns; service vehicle parking and associated driver facilities; cycle parking; temporary barriers and security fencing with entrance gates; and associated works.

10 The physical works associated with the proposed temporary use involve erecting temporary accommodation, equipment and infrastructure with a floor space of 5,500 square metres.

Case history

11 Greenwich Park has hosted a number of significant sporting events. Most notably, it was the venue for the 2012 Olympic equestrian events, the riding and running disciplines of the modern pentathlon events and the venue for the Paralympic equestrian events. This application (LPA Ref: 09/2598/F and GLA Ref: PDU/2505/01) was considered and supported by the former Mayor in January 2010. The Park is also one of the three start points for the London Marathon and since 2008 has been used for the London Half-Marathon.

Strategic planning issues and relevant policies and guidance

12 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area comprises the 2014 Royal Borough of Greenwich Local Plan: Core Strategy with detailed policies, and the 2016 London Plan (consolidated with Alterations since 2011).

13 The following are also relevant material considerations:

- The National Planning Policy Framework 2019 and National Planning Practice Guidance.
- The Mayor's Intend to Publish London Plan (December 2019), which should be taken into account on the basis explained in paragraph 48 of the NPPF.

14 The relevant issues and corresponding policies are as follows:

- Metropolitan Open Land *London Plan; the Mayor's Intend to Publish London Plan;*
- Sports facilities *London Plan; the Mayor's Intend to Publish London Plan;*
- Community use *London Plan; the Mayor's Intend to Publish London Plan;*
- Heritage and urban design *London Plan; the Mayor's Intend to Publish London Plan;*
- Inclusive access *London Plan; the Mayor's Intend to Publish London Plan; Accessible London: achieving an inclusive environment SPG;*
- Transport *London Plan; the Mayor's Intend to Publish London Plan; the Mayor's Transport Strategy*

Principle of development

15 London Plan Policy 7.17 affords Metropolitan Open Land (MOL) the strongest possible protection, whilst Policy G3 of the Mayor's Intend to Publish London Plan states that MOL should be protected from inappropriate development and proposals that harm MOL should be refused. Both policies state that national Green Belt policies, set out within the NPPF, apply to MOL and therefore MOL is offered the same protection as Green Belt.

16 Paragraph 143 of the NPPF states that inappropriate development is, by definition, harmful to Green Belt and should not be approved except in 'very special circumstances'. According to paragraph 144 of the NPPF, when determining applications, LPAs should ensure that substantial weight is given to any harm to the Green Belt; 'very special circumstances' will not exist unless the potential harm to Green Belt by reason of inappropriateness, and any other harm resulting from the proposal, is clearly outweighed by other considerations.

17 As set out in paragraph 145 of the revised NPPF, the construction of new buildings should be regarded as inappropriate development in the Green Belt. Exceptions to this are:

- a) buildings for agriculture and forestry;
- b) the provision of appropriate facilities (in connection with the existing use of land or a change of use) for outdoor sport, outdoor recreation, cemeteries and burial grounds and allotments; as long as the facilities preserve the openness of the Green Belt and do not conflict with the purposes of including land within it;
- c) the extension or alteration of a building provided that it does not result in disproportionate additions over and above the size of the original building;
- d) the replacement of a building, provided the new building is in the same use and not materially larger than the one it replaces;
- e) limited infilling in villages;

- f) limited affordable housing for local community needs under policies set out in the development plan (including policies for rural exception sites); and
- g) limited infilling or the partial or complete redevelopment of previously developed land, whether redundant or in continuing use (excluding temporary buildings), which would:
 - not have a greater impact on the openness of the Green Belt than the existing development; or
 - not cause substantial harm to the openness of the Green Belt, where the development would re-use previously developed land and contribute to meeting an identified affordable housing need within the area of the local planning authority.

18 London Plan Policy 7.17 and Policy G3 of the Mayor's Intend to Publish London Plan set out that such appropriate uses will only be acceptable provided they maintain the openness of MOL. Given the outdoor sports and recreation use is for a temporary period (four weeks) with temporary structures, its impact on the openness of the MOL, Listed Buildings, World Heritage Site and the Conservation Area is limited and temporary.

19 The proposed development for an outdoor sport and recreation event on Metropolitan Open Land for a temporary period meets the above exception test in bullet point (b) of paragraph 145 of the NPPF as it 'preserves the openness of the Green Belt and does not conflict with the purposes of including land within it', therefore, the proposal is appropriate development and supported in principle. However, it should be stressed that critical to the overall acceptability of the proposal is the need to ensure that any harm the proposal causes to the MOL is fully mitigated and that measures are in place to return the land to its existing or better condition, which must be secured through a planning condition / s106 agreement.

Conclusion on principle of development

20 The proposed development falls within Paragraph 145(b) of the NPPF as it is the provision of appropriate facilities for outdoor sport and recreation, and the facilities preserve the openness of the MOL and do not conflict with the purposes of including land within it, therefore, it is appropriate development. The proposal is therefore supported, provided the mitigation measures and issues which are discussed below are addressed and secured.

Sports facilities and community use

21 The applicant envisages that the proposal would generate community, economic and cultural benefits for the Borough and London as a whole. It is noted that on Community Event Days, programmed community activities will be held, for example arts, cultural and sports events. The applicant and the production company will work with stakeholders to identify interest and demand from the surrounding area and develop content in consultation with the Royal Borough of Greenwich and The Royal Parks. Activities could include existing RBG and GLA events relocated to the Fan Zone site and specific events curated to coincide with the Tournament such as open air cinema and sports skills.

22 Whilst the above community benefits are welcomed, a detailed community use agreement in terms of the intended level of access and fee discounts must be secured by way of condition / s106 planning agreement.

Heritage and urban design

23 The Planning (Listed Buildings and Conservation Areas) Act 1990 sets out the statutory duties for dealing with heritage assets in planning decisions. In relation to listed buildings, all planning decisions 'should have special regard to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses'.

24 The NPPF states that when considering the impact of the proposal on the significance of the designated heritage asset, great weight should be given to the assets conservation. Significance can be harmed or lost through alteration or destruction of the heritage asset or development within its setting. Significance is the value of the heritage asset because of its heritage interest, which may be archaeological, architectural, artistic or historic, and may derive from a heritage asset's physical presence or its setting. Where a proposed development will lead to 'substantial harm' to or total loss of the significance of a designated heritage asset, local planning authorities should refuse consent, unless it can be demonstrated that the substantial harm or loss is necessary to achieve substantial public benefits that outweigh that harm or loss. Where a development will lead to 'less than substantial harm', the harm should be weighed against the public benefits of the proposal.

25 London Plan Policy 7.8 'Heritage assets and archaeology', states that development affecting heritage assets should conserve their significance by being sympathetic to their form, scale, materials and architectural detail. Policy HC1 'Heritage assets and archaeology' of the Mayor's Intend to Publish London Plan further specifies that the cumulative impacts from incremental change from development on heritage assets and their setting should be actively managed and that development proposals should avoid harm.

26 London Plan Policy 7.10 states that development should not cause adverse impacts on World Heritage Sites or to their settings (including any buffer zones). In particular, it should not compromise a viewer's ability to appreciate its Outstanding Universal Value, integrity, authenticity or significance. Policy HC2 of the Mayor's Intend to Publish London Plan further states that development, in WHS and their settings, including buffer zones, should conserve, promote and enhance their Outstanding Universal Value, or the authenticity and integrity of their attributes and provide that when considering planning applications, appropriate weight should be given to the provisions of World Heritage Site Management Plans.

27 The full extent of World Heritage Site includes the ensemble of Queen's House (the last part of the Royal Palace), the Old Royal Naval College (formerly Royal Hospital for Seamen) and part of Greenwich town centre. Unlike other Royal Parks, Greenwich Park was not designed as a public park and its origins are a medieval hunting park overlaid by a formal Restoration landscape of 17th Century garden design. The landscape has important historic and scientific associations reflecting Britain's maritime history and provides the site and location of Prime Meridian, of worldwide significance. The Park also has rich sources of archaeology, evidencing earlier human activity.

28 In accordance with paragraph 196 of the NPPF, where a development will lead to 'less than substantial harm', the harm should be weighed against the public benefits of the proposal. In carrying out this balance, in accordance with the statutory requirements, great weight and importance should be attached to the harm to designated assets. Given the heritage asset of international importance, the decision maker must give particularly importance and weight to any identified harm to this asset.

29 The applicant proposes a 4-week sports and recreation event. The proposals will alter the appearance of the site, but for a limited period. From many locations, views of the Fan Zone ground and installations will be partial and restricted by distance and mature trees and vegetation, therefore the visual harm is limited and results in less than substantial harm.

30 A Ground and Event Management Plan has been prepared that would restore any damaged ground. There will be no permanent alteration or destruction of the heritage assets and no long-term impact on their settings or the historic environment. The current application, therefore, results in less than substantial harm.

31 Having regard to these matters, GLA officers consider any harm to heritage assets to be less than substantial and clearly outweighed by the public benefits of the scheme which would be secured as part of the planning permission, which include community, cultural and sports benefits.

32 This balancing exercise accords with paragraph 196 of the NPPF which states 'Where a development proposal will lead to less than substantial harm to the significance of a designated heritage asset, this harm should be weighed against the public benefits of the proposal including, where appropriate, securing its optimum viable use.' Given the low level and temporary nature of the proposal, no conflict with Policies 7.8 and 7.10 of the London Plan and Policies HC1 and HC2 of the London Plan – Intend to Publish version would arise. Nor, given the outcome of the public benefits balance set out above, would there be any conflict with the NPPF.

Inclusive access

33 Policy D3 'Inclusive design' of the Mayor's Intend to Publish London Plan and Policy 7.2 of the London Plan seek to ensure that proposals achieve the highest standards of accessible and inclusive design (not just the minimum). The proposal will offer a fully inclusive access and sports programme, and all the proposed inclusive access measures must be secured through condition.

Fire safety

34 In accordance with Policy D12 'Fire safety' of the Mayor's Intend to Publish London Plan, all major development proposals should be submitted with a Fire Statement, which is an independent fire strategy, produced by a third party, suitably qualified assessor. The submission of this Statement and its implementation must be secured through an appropriate condition.

Transport

35 TfL has no objection in principle to the proposed temporary event, as similar events have taken place for a number of years and all events are scrutinised as part of the event licensing application process.

36 Detailed Stage 1 transport comments have been separately sent to the applicant and the Royal Borough of Greenwich, which must work with TfL to address issues including:

- Arrangements and funding to mitigate impacts on the public transport network.
- The Event Management Plan must ensure that detailed co-ordinated arrangements and management of transport to/from the site by spectators, timing and mode of travel by spectators, staff and others and delivery and servicing vehicles are agreed with TfL and put in place.

37 TfL have confirmed that these matters are capable of resolution through planning conditions and s106 agreement.

Local planning authority's position

38 Royal Borough of Greenwich planning officers have indicated support for the scheme and that the application is likely go to the Council's Planning Board meeting scheduled for 12 February 2020.

Legal considerations

39 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Council must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged or direct the Council under Article 6 of the Order to refuse the application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Financial considerations

40 There are no financial considerations at this stage.

Conclusion

41 London Plan and the Mayor's Intend to Publish London Plan policies on Metropolitan Open Land, community use, heritage and urban design, and transport are relevant to this application. In general, the application complies with these policies, for the following reasons:

- **Principle of development:** Installation of temporary structures for outdoor sports and recreation use for a temporary period on Metropolitan Open Land is appropriate development and acceptable. Mitigation measures must be secured to ensure that the land is returned to its existing or better condition.
- **Community use:** The wider community benefits, the intended level of access and fee discounts should be secured by way of condition/planning agreement.
- **Heritage:** The proposal would result in less than substantial harm to listed buildings, World Heritage Site and the Greenwich Conservation Area. However, this harm would be outweighed by the community benefits of the proposal, which would also increase public use of the site for sports and cultural purposes and enhance appreciation of the Park.
- **Transport:** The proposal is supported in principle, and all outstanding concerns can be addressed and secured through conditions and planning agreement.

42 The Mayor does not need to be consulted again on this application.

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